

HOUSE No. 4673

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 3, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1637) of Michael S. Day relative to claims, liability or penalties for transporting a person to a community behavioral health center, reports recommending that the accompanying bill (House, No. 4673) ought to pass [Representatives Berthiaume of Spencer and Sullivan-Almeida of Abington dissent].

For the committee,

MICHAEL S. DAY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting first responders and enhancing access to behavioral health centers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 231 of the General Laws is hereby amended by inserting after
2 section 85BB the following section:-

3 Section 85CC. Notwithstanding any general or special law to the contrary, no duly
4 licensed or certified law enforcement officer, as defined in section 1 of chapter 6E, or
5 ambulance, emergency medical technician or other person or entity providing ambulance service
6 or emergency medical services, as those terms are defined in section 1 of chapter 111C, shall be
7 subject to any claim, liability or penalty for any good faith action or inaction taken in good faith
8 when transporting a person to a community behavioral health center, as defined in section 13D½
9 of chapter 118E.